

**SUBSTITUTE FOR
HOUSE BILL NO. 5325**

A bill to amend 2016 PA 436, entitled
"Unmanned aircraft systems act,"
(MCL 259.301 to 259.331) by adding section 8a.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 **Sec. 8a. (1) Subject to subsection (3), a police officer, or a**
2 **private security officer employed by a facility described in**
3 **section 45a of chapter VII of the Michigan penal code, 1931 PA 328,**
4 **MCL 750.45a, may intercept, disable, or destroy an unmanned**
5 **aircraft that is flying in a manner that violates section 45a of**
6 **chapter VII of the Michigan penal code, 1931 PA 328, MCL 750.45a.**

7 **(2) A police officer or private security officer who**
8 **intercepts, disables, or destroys an unmanned aircraft under**
9 **subsection (1) is not liable to the owner of the unmanned aircraft**



1 for damage to the unmanned aircraft.

2 (3) Subsection (1) applies only to a police officer or private
3 security officer who completes federally approved training and
4 certification procedures for exercising the authority described in
5 subsection (1).

6 (4) This section applies only to the extent that this section
7 is not preempted by federal law.